

Addendum Date: July 17, 2026 Emory Woods Apartments Ltd ["Management"] ☐ as Owner of

☒ as Agent for the Owner of Emory Woods

["Community Name"] enters into this Crime Warning and Limitation of Liability Animal Addendum to the Apartment Rental Contract with Abigail Eum

["Resident"], pertaining to Apt. No. 10 located at 2057 Powell Lane, Decatur, GA 30033

[Address]. This addendum is part of the Apartment Rental Contract dated July 15, 2026 [Date of Lease].

1. **Important: Please read this addendum before signing.** This addendum pertains to crime that may be committed in or around the apartment community and personal injuries or property loss sustained by the Resident as the result of that crime. This addendum requires the Resident to take reasonable steps for protecting his or her safety and security, and it *limits the liability* of the apartment Owner and managing agent or company *under certain circumstances* for injuries, property loss, and damages. Your signature below means that you read and understand this addendum. Although all parts of this addendum are important, please see Paragraph 9 regarding your waiver and release of the Owner and Management of the apartment community related to certain claims.

2. **Definitions.** The term "Resident" includes all Residents who have signed this addendum and any child, minor, person, or occupant of which the Resident is the parent or legal guardian. The term "Owner" refers to the apartment ownership entity. If this addendum is signed by the Owner, then the Owner is also referred to as "Management." If this addendum is signed by the company or persons managing the apartment community on behalf of and as the agent for the Owner, then "Management" refers to the managing agent of the owner. The terms "Owner" and "Management" include their respective general and limited partners, officers, directors, agents, employees, and shareholders or members.

The term "security" refers to any procedure, equipment, personal property, or personnel that have or may have some function related to deterring, limiting, or preventing crime or access in, to, or near the apartment community. "Security," includes, but is not limited to, access gates for pedestrians and vehicles, fences, alarm or intrusion systems, surveillance cameras, digital video recorders, lighting, door and window locks, audio communication boxes, gate clickers, access codes, courtesy officers, and security officers or personnel.

3. **Owner and Management Make No Representations, Guaranties, Covenants, or Warranties About the Safety of the Apartment Community from Crime or Providing Security that Will Prevent Crime.** Resident acknowledges and agrees that neither the Owner nor Management have made any verbal or written representations, guaranties, covenants or warranties, either express or implied, that:

The apartment community or its entrances, exits, common areas, apartments, or any portion are safe or free from crime;

The neighboring community or neighborhood outside of or around the apartment community are safe or free from crime; or

Security is, has been, or will be provided to or for Resident that will protect Resident or his property from crimes or will prevent crime from occurring in or around the apartment community.

Neither the Owner nor Management market, advertise, or make representations that the Resident or Resident's occupants, social guests, visitors, or invitees will be safe or free from crime while they are in, near, at, leaving, or entering any portion of the apartment community.

Although the Owner and Management may provide certain forms of security in the apartment community, such security cannot deter or prevent all crimes. Crimes do occur from time to time at or near the apartment community, but neither the Owner nor Management know when or where a crime will occur.

4. **Existence or Absence of Security Procedures, Devices, or Personnel Does Not Create an Assurance of Safety or Crime Prevention.** Resident acknowledges and agrees that the existence, presence, or absence of security procedures, devices, or personnel in the apartment or common areas of the apartment community do not constitute any kind of implied warranty or representation from the Owner or Management that the Resident will be safe or protected from crime or that such security procedures, devices, or personnel will prevent or deter crime from occurring in the apartment or around or near the apartment community.

Resident agrees that there is no law or contractual agreement of any kind that requires the Owner or Management to use or provide specific kinds of security procedures, devices, or personnel in the common areas of the apartment community or inside of the leased premises of the apartment itself. Resident agrees that Owner and Management are not contractually obligated to provide security to Resident under the wording of the lease or this addendum.

The Owner and Management may provide certain basic security devices such as locks on apartment doors and windows or intrusion alarm systems in the apartment. The Resident is responsible for checking whether such locks and intrusion alarms that secure the apartment are functioning and must promptly report any need for repair, replacement, or maintenance. The Owner's duties to provide repairs *in the apartment* is controlled by Georgia landlord and tenant law. Having parted with possession of the apartment when it was leased and Resident took possession, Resident is responsible for giving proper notice to the Owner or Management of the need for any repairs to locks and intrusion alarm systems and properly using an intrusion alarms system and the locks on all doors and windows of the apartment. Resident assumes possession and control of the apartment by signing the lease and accepting the keys to the apartment.

It is Resident's responsibility to exercise due care and caution for his or her own safety at all times when entering and exiting the apartment and when inside the apartment premises by properly inspecting and using all security and safety devices that may be in the apartment. Nothing contained in this addendum is intended to waive or change the Owner's duty of making repairs *to the apartment* or the liability of the Owner for failure to make repairs *to the apartment* as provided under Georgia landlord and tenant law; however, such repair provisions do not apply to the *common areas* of the apartment community which are governed by other law. Resident acknowledges and agrees that the Owner and Management have no statutory or contractual duty to make repairs or provide security to the *common areas* of the apartment community.

Any benefit derived by Resident or Resident's occupants, family, social guests, visitors, or invitees from security in the common areas of the apartment community is incidental to the Apartment Rental Contract, and Resident is not a third party beneficiary of such security.

Resident agrees that testimony or evidence by any person, security consultant, or law enforcement officer that the proper use and installation of security procedures, devices, or personnel could or would have prevented a crime from occurring would be speculative in nature and cannot be used to establish liability of the Owner or Management in any premises liability claim or case pertaining to a crime committed on or around the apartment community.

Resident agrees that he or she shall not form an assumption at any time that he or she is safe from crime or that security procedures, devices, or personnel at the apartment community will prevent crime. Resident must exercise reasonable care for his or her safety at all times to avoid crime. Even properly functioning security procedures, devices, or personnel can be avoided or by-passed by persons intending to commit a crime. Additionally, from time to time such security may malfunction or require repair.

5. **Limitations in the Function of Access Gates and Perimeter Fencing.** Resident acknowledges and agrees that the function of controlled or limited access gates and perimeter fencing around or in portions of the apartment community is limited in its effectiveness as a form of security. If such access gates and fencing are present, their function is to control, limit, and deter access into the common areas of the apartment community. Resident understands and agrees that fencing, doors, and access gates will not prevent unauthorized entry and crime. Resident understands and acknowledges that other Residents could or may provide other authorized and unauthorized persons entry, access codes, or electronic opening devices that give such persons access to the common areas of the apartment community. The Owner and Management have no way of knowing when or how persons who are not a resident or occupant will be provided access or whether such persons intend to commit a crime. Resident understands that unauthorized persons can gain access to the inside of buildings and common areas of the apartment community even when security procedures, devices, or personnel are present and functioning.

6. **Security Personnel and Owner or Management Employees Do Not Provide Emergency or Law Enforcement Services.** Resident acknowledges and agrees that:

Security personnel and Management employees are not employed to provide emergency, medical, security, protection, fire, or police services to Resident or Resident's family, occupants, social guests, visitors, and invitees;

The primary function of security personnel, if present, is to observe and report on incidents as directed by the Owner and Management;

Owner and Management do not offer or provide any armed or unarmed security personnel that will keep the Resident safe and prevent crimes against Resident or his property; and

It is the responsibility of appropriate federal, state, and local law enforcement agencies to protect Resident; respond to Resident's report of a crime; to prevent and deter crime; and to make arrests for violation of the law.

7. **Owner and Management May Discontinue or Change Security Personnel, Devices, or Procedures Without Notice or Liability** Owner and Management shall have the right at any time, with or without notice, to install, modify or remove any security procedures, devices, or personnel without liability therefore. Any modification or removal of security devices, personnel, or procedures shall not serve as a basis for breach of contract or tort claim against the Owner or Management. Failure or malfunction of security devices, personnel, or procedures to operate properly or prevent crime shall not serve as grounds for abatement of rent or grounds for the Resident to terminate the lease based on an alleged breach of contract. The Resident's obligation to pay rent is independent of the Owner's or Management's duties under the law.

8. **Resident Has a Duty to Exercise Due Care at All Times for His or Her Safety.** Resident acknowledges and agrees that he or she has a duty at all times to exercise due care to protect and provide for his or her own safety and property from the criminal acts of others. Resident understands and agrees that the Owner or Management cannot and do not provide police or law enforcement services.

Resident acknowledges and agrees that in the event he or his family, occupants, guest or invitees are in need of emergency, medical, security, protection, fire, or police services, he or she shall have the duty to contact the appropriate governmental emergency, medical, fire, or law enforcement service or agency.

9. **Limitation of Owner's and Management's Liability: Neither Owner Nor Management Shall Have Liability to Resident for Damage or Injury Sustained Due to the Criminal Acts of Others Based on Keeping Common Areas of the Apartment Community Safe from Crime.** Resident expressly waives and releases Owner or Management from any liability or any negligence claim based on alleged criminal acts of others pertaining to any condition, defect, action, or failure to act in the *common areas* of the apartment community to the fullest extent allowed by law, including, but not limited to, claims pertaining to alleged negligence in preventing or failing to prevent crime in the apartment with regard to the safety, maintenance, or conditions in the *common areas* of the apartment community. Resident acknowledges and agrees that it is impossible for the Owner or Management to know when or how a crime may be committed or to prevent a crime from happening. The Owner and Management are not responsible or liable for the criminal acts of others who violate the law and cause injury or property loss to Resident or Resident's occupants, family members, social guests, visitors, or invitees, except as may otherwise be provided by law.

*This Addendum and this contractual provision limit the ability of Resident to sue for or to recover civil damages from the Owner or Management for crimes committed against the Resident or loss of Resident's property by others under certain conditions.*

Resident agrees that the Owner and Management are not guarantor's of Resident's safety and agrees to waive, release, and forego any premises liability claim for personal injuries or property loss due to crime committed by others, including, but not limited to, those claims based on the Owner's duty to keep the *common areas* safe from crime. Resident knowingly waives and releases the Owner and Management from any claim for alleged negligence for failure to keep the *common areas* of the apartment community safe from crime.

Resident agrees that he or she did not lease any portion of the *common areas* of the apartment community; accepted the common areas as is; and, only leased the apartment itself. Resident's use of the common areas of the apartment community is a permissive license incidental to leasing the apartment to use the common areas as provided in the lease and community rules and other addenda. The waiver and release of liability in this paragraph do not apply to the owner or occupier of land's duties and liability under Georgia landlord and tenant law that apply *in the apartment*, as opposed to the *common areas*.

The commission of a crime against another resident, occupant, or person shall not serve as ground for abatement of rent or a ground for the Resident to terminate the lease based on an alleged breach of contract.

10. **Owner and Management Have No Liability for Crime Committed on Another's Property or on Public or Private Easements.** Neither Owner nor management shall have any liability for any crime committed on or originating on property of another owner or on property adjacent to apartment community that is not owned by Owner. Neither Owner nor Management shall have liability for any crime that occurs on a public right of way nor for a crime that occurs on a private right of way; easement; or license held, controlled, or maintained by a federal, state, city, or county government or by another owner, private person, or public utility or agency.
11. **Law Enforcement Officers Living and Working at Apartment Community Are Not Employees of Owner or Management.** Resident acknowledges and agrees that any law enforcement officer who lives at the apartment community or provides services of any kind or nature to the apartment community in exchange for discounted rent or compensation acts solely as an independent contractor and is not an employee of the Owner or Management. Law enforcement officers who may be described as "courtesy officers" or who provide any kind of services while not on regular duty hours for the law enforcement agency at which they are employed are *not* employees of the Owner or Management. Resident agrees that to the extent any such law enforcement officer exercises the use of police powers to perform an arrest, deter a crime, or to apprehend a criminal is performed in his or her capacity as an off-duty law enforcement officer in his or her governmental law enforcement capacity and not as an agent of the Owner or Management.
12. **Intrusion Alarms In Resident's Apartment Do Not Guaranty Resident's Safety from Crime.** An Intrusion alarm system in the leased premises of the apartment, if any, is not a guarantee of Resident's safety from crime. Resident acknowledges and agrees that if such intrusion system was installed by Owner or Management in the apartment as part of the leased premises that it is Resident's responsibility to establish or set up his or her own monitoring contractor to provide monitoring of the alarm system. The intrusion alarm system is not monitored by the Owner, Management, or a security service provided by the Owner or Management, nor by any law enforcement agency.

The intrusion alarm is not connected to any central or monitored system as part of the lease. Neither Owner nor Management shall have any liability for responding or failing to respond to or monitoring any such intrusion alarm system.

Neither Owner nor Management shall have any duty to monitor or respond to an intrusion alarm system nor any liability for failure to monitor and respond to an intrusion alarm. Resident agrees that Owner and Management may at any time, either with or without notice to Resident, replace, discontinue, or disconnect any such alarm or intrusion system. Any such change, replacement, modification, discontinuance or suspension of an intrusion alarm system shall not relieve Resident of liability for payment of rent nor shall it excuse Resident from fulfilling the balance of the remaining term of the lease.

13. **Owner and Management Are Not Required to Provide Notices of Crime in the Apartment Community.** Resident acknowledges and agrees that: Owner and Management are not required by law to provide written or verbal notices of crimes committed in or around the apartment community to the Resident;

Owner's or Management's decision to provide crime notices does not create a legal or contractual duty on the part of the Owner and Management to investigate or provide information to Resident regarding crimes that occur on the property nor to continue giving such notices in the future;

The failure to give notice of crime that comes to Owner's or Management's attention does not breach a legal, tort, or contractual duty to provide such notices;

Resident has an affirmative obligation to perform his or her own due diligence of crime in or around the apartment community and determine what crimes have or have not occurred;

Owner's or Management's failure to give notice of prior crimes does not create liability or breach a duty to Resident;

It is purely speculative whether the giving or receipt of a crime notice would have prevented a crime against Resident or prevented an injury or loss of property; and

Resident's failure to conduct his or her own due diligence throughout the term of their lease and occupancy as to what crimes have occurred in or near the apartment community are a breach of Resident's contractual duty to exercise due care for his or her own safety and creates a defense or comparative negligence to any tort claim filed by Resident against Owner or Management.

Resident acknowledges that:

Owner and Management do not have knowledge of every crime that may be committed on or around the apartment community as many crimes go unreported to either the Owner or Management or to law enforcement agencies; and

Crimes which are reported only to the police may not be known to the Owner or Management.

Resident agrees that he or she shall not form any assumption or reliance on the giving or failure of giving any notices as to whether crimes have occurred in the apartment community. Regardless of what steps the Owner or Management take to provide notices of crime, security personnel, security devices, or security procedures, crimes do and will happen in the apartment community. Resident agrees that he or she will never assume they are safe from crime and will exercise due care for their safety at all times.

14. **Lighting Conditions in the Common Areas of the Apartment Community Cannot Form a Basis of Liability for Crime.** The Owner and Management shall not be liable to Resident in tort or contract for the failure of a light to function properly, low lighting, or lack of lighting in common areas of the apartment community. Resident agrees to avoid using dark or unlighted portions of the common areas in the apartment community until the lighting is repaired or placed in such area and to exercise reasonable steps for his or her safety when entering and exiting the apartment or building under low light or no light conditions. Resident waives and releases the Owner and Management from any claims of negligence based on failure to provide adequate or proper lighting in the *common areas*. Resident agrees that whether the presence of such lighting would have prevented a crime is speculative and cannot form the basis of liability for injury or loss due to crime.

15. **Resident Agrees to Inform Family Members, Occupants, Social Guests, Visitors, and Invitees Regarding Crime and Safety at the Apartment Community.** Resident has a duty and agrees to advise and notify his family, occupants, social guests, visitors, or invitees of all provisions in this addendum and warn them to exercise due care for their safety at all times from crimes occurring on or near the apartment community, regardless of the presence or absence of any security. Resident agrees to indemnify and hold harmless Owner and Management from any and all claims, losses, personal injuries, property loss, or damages to Resident's family, occupants, social guests, visitors, or invitees due to Resident's failure to advise or notify said family, occupants, social guests, visitors, or invitees of the contents of this addendum.
16. **Any Portion of Addendum Found to Be Void or Unenforceable to Be Severed and Remainder Enforced.** If any phrase, sentence, portion, provision, or paragraph of this addendum shall be found or determined to be void or unenforceable under Georgia law, then such void or unenforceable phrase, sentence, portion, provision, or paragraph shall be severed, and the balance or remainder of this addendum shall be upheld as valid and enforceable so as to carry out the expressed intent of the parties to this contract. The provisions of this addendum are contractual in nature and not mere recitals. If any phrase, sentence, portion, provision, or paragraph of this addendum is held to be void or unenforceable, the addendum in its entirety shall still be admissible in evidence in any civil lawsuit or trial with appropriate instructions as to effectiveness of the void or unenforceable portion.
17. **Merger of All Prior Statements.** All prior statements, representations or agreements pertaining to security shall be void and unenforceable and are merged herein unless such representation is in writing and signed by all parties to this addendum and the Residential Lease Contract.
18. **Crime Warning and Limitation of Liability for Crime Is Incorporated by Reference into the Apartment Rental Contract.** This addendum shall be incorporated into the Residential Rental Contract between the Resident and Owner and Management and is effective and enforceable regardless of whether this addendum has been separately signed by the parties to said lease agreement. The terms and provisions contained in this addendum shall remain in effect throughout Resident's occupancy in the apartment community, and this addendum shall not be revoked in the event Resident extends the original lease, signs a renewal contract, or signs an entirely new rental contract for continued occupancy or residence in the apartment community.
19. **Resident Has Inspected or Has Had the Opportunity to Inspect and Investigate the Apartment and Apartment Community for Security, Safety, and Crime.** Resident acknowledges and agrees that he or she has inspected or had the opportunity to inspect and investigate the apartment and apartment community for security, safety, and crime and determined to his or her satisfaction that the security is adequate, satisfactory, and in proper working order unless otherwise noted on the Move-In inspection form or unless otherwise provided in written notice to the Owner or Management. Resident acknowledges and agrees that any comments noted on the Move-In inspection form are not a written request to repair and that any request to repair must be submitted separately in writing and make a clear request for repair or maintenance. Resident agrees that neither the Owner nor Management shall have any duty to inspect, test, repair, or service door locks or latches, window locks or latches, or intrusion alarm systems inside the lease premises of *the apartment* until the Resident has notified the Owner or Management in writing of the need for such repairs or replacement.
20. **Resident Responsible for Any Self Installation of an Alarm or Intrusion System or Locks.** Resident acknowledges and agrees that if he or she installs their own locks or intrusion alarm system, such installation shall be deemed an improvement made by Resident, and as such, Resident shall be responsible and obligated to repair and maintain any self installed intrusion alarm system or locks. Owner and Management shall not be responsible for or obligated to repair, replace, and/or maintain any locks or intrusion alarm system installed by Resident or Resident's contractor.

**Emory Woods Apartments Ltd**

\_\_\_\_\_  
Name of Owner or Management Company

Resident \_\_\_\_\_

By: \_\_\_\_\_  
Signature of Management Representative

Resident \_\_\_\_\_

As: \_\_\_\_\_ (Title)

Resident \_\_\_\_\_

Resident \_\_\_\_\_

Resident \_\_\_\_\_

Resident \_\_\_\_\_